

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Paul Baron	Team: Team # 4	CCRB Case #: 201011700	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/21/2010 11:59 PM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 2/21/2012	EO SOL 2/21/2012	
Date/Time CV Reported Wed, 08/25/2010 2:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/25/2010 2:01 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Lamont Gibson	05872	944594	044 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Lamont Gibson	Abuse: PO Lamont Gibson stopped § 87(2)(b)	§ 87(2)(b)
B. An officer	Abuse: An officer stopped § 87(2)(b)	§ 87(2)(b)
C.POM Lamont Gibson	Abuse: PO Lamont Gibson frisked § 87(2)(b)	§ 87(2)(b)
D. An officer	Abuse: An officer frisked § 87(2)(b)	§ 87(2)(b)
E.POM Lamont Gibson	Abuse: PO Lamont Gibson searched § 87(2)(b)	§ 87(2)(b)
F. An officer	Abuse: An officer searched § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on August 25, 2010. She reported that on August 21, 2010, at approximately 11:59 PM, two officers approached and stopped her son, § 87(2)(b) as he exited from § 87(2)(b), in the Bronx (**Allegation A and B**). The officers frisked and searched § 87(2)(b) (**Allegations C, D, E, and F**), and recovered a bag of marijuana. § 87(2)(b) was arrested by PO Lamont Gibson, assigned to the 44th Precinct. The arrest report indicates that § 87(2)(b) was actually stopped at 2:00 AM on August 22, 2010, at § 87(2)(b), in the Bronx. § 87(2)(g)

On September 1, 2010, the undersigned spoke with § 87(2)(b)'s attorney, § 87(2)(b) who stated he was fine with § 87(2)(b) providing a statement as long as he was present. On September 7, 2010, the undersigned spoke with § 87(2)(b) and told him that if he wanted to proceed with the complaint, he needed to pick a date with his attorney and schedule an interview. On September 10, 2010, the undersigned left § 87(2)(b) a voicemail indicating he needed to pick out a date by September 17, 2010; the undersigned also mailed him a final contact letter. On September 16, 2010, § 87(2)(b) called the undersigned and stated that he was not sure if he wanted to make a statement because of his open criminal case and that he wanted to talk to another lawyer. The undersigned told § 87(2)(b) that he needed to provide the CCRB with his decision by September 20, 2010. The undersigned left § 87(2)(b) a message on September 21, 2010, stating that if he did not contact the CCRB with his decision by the end of the day, his case would be closed. To date, § 87(2)(b) has not made any further attempts to contact the CCRB.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date